



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

DEC 14 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 8621
(FOURTH REVISION)

EXPIRATION DATE: October 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: P&O Ports Gulfport, Inc.
(Former Grantee: I.T.O. Corporation)
Gulfport, MS
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the loading or unloading of oxidizing materials on a vessel at a non-isolated facility. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.415(c)(2) in that certain materials may loaded or unloaded at a non-isolated facility.
5. BASIS: This exemption is based on the application of P&O Ports Gulfport, Inc. dated September 21, 2000, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonium nitrate fertilizers	5.1	UN2067	III

7. SAFETY CONTROL MEASURES:

- a. Packagings prescribed in § 173.213 are required.
- b. Ammonium nitrate mixtures subject to this exemption must be tested without detonation in accordance with The Fertilizer Institute's (TFI) publication "Definition and Test Procedures for Ammonium Nitrate Fertilizer" dated May 7, 1971. The ammonium nitrate mixtures must conform to the TFI publication in all respects except the percentage of ammonium nitrate in a formulation. TFI specifies 33% total nitrogen which corresponds to about 95% ammonium nitrate. For the purposes of this exemption, the percentage of ammonium nitrate may be 60 or greater.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The requirement that packages must be loaded or unloaded at a facility removed from congested areas or high value or high hazard industrial facilities is waived.
- d. The loading and unloading operations authorized by this exemption are only permitted at the Mississippi State Port Authority Terminal in Gulfport, MS.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

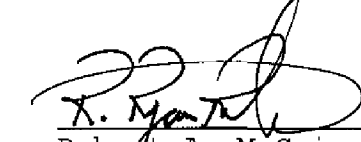
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

DEC 14 2000

Continuation DOT-E 8621 (4th rev.)

Page 4

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